

CONFIDENTIALITY AGREEMENT

This Confidentiality Agreement (the “Agreement”) is entered into by and between the disclosing party representing the business (“Disclosing Party”), and the undersigned party (“Below Signer”).

1. Purpose. The Disclosing Party is willing to disclose certain confidential information to the Below Signer for the purpose of evaluating a potential business acquisition or investment opportunity (the “Purpose”). The Below Signer agrees to hold such information in strict confidence as set forth in this Agreement.

2. Definition of Confidential Information. For purposes of this Agreement, “Confidential Information” includes all non-public, proprietary, or sensitive information disclosed by the Disclosing Party to the Below Signer, whether orally, in writing, or by any other means, including but not limited to business plans, financial data, customer lists, marketing strategies, operational processes, intellectual property, and any other information designated as confidential by the Disclosing Party.

3. Obligations of the Below Signer. The Below Signer agrees to:

- Use the Confidential Information solely for the Purpose and not for any other purpose without the prior written consent of the Disclosing Party.
- Maintain the confidentiality of the Confidential Information with at least the same degree of care as it uses to protect its own confidential information, but in no event less than a reasonable standard of care.
- Not disclose, publish, or otherwise reveal any Confidential Information to any other party except as expressly permitted herein.

4. Permitted Disclosures. The Below Signer may disclose Confidential Information to its employees, agents, or advisors who have a need to know such information for the Purpose and who are bound by confidentiality obligations at least as restrictive as those in this Agreement. The Below Signer shall be responsible for any breach of this Agreement by such persons.

5. Exclusions from Confidential Information. Confidential Information does not include information that:

- Is or becomes publicly available through no fault of the Below Signer;
- Was rightfully in the Below Signer’s possession prior to disclosure by the Disclosing Party;

- Is independently developed by the Below Signer without use of or reference to the Confidential Information; or Is rightfully obtained by the Below Signer from a third party without restriction on disclosure.

6. Required Disclosures. If the Below Signer is required by law, regulation, or court order to disclose any Confidential Information, it shall promptly notify the Disclosing Party in writing to allow the Disclosing Party a reasonable opportunity to seek a protective order or other remedy. The Below Signer shall disclose only the minimum amount of Confidential Information required and shall use reasonable efforts to obtain confidential treatment for such disclosure.

7. Return or Destruction of Information. Upon the Disclosing Party's written request or upon termination of discussions related to the Purpose, the Below Signer shall promptly return or destroy all copies of the Confidential Information, except as required by law to be retained, and certify such return or destruction in writing if requested.

8. No License or Ownership. Nothing in this Agreement grants the Below Signer any rights, license, or ownership in or to the Confidential Information. All Confidential Information remains the property of the Disclosing Party.

9. Term and Termination. This Agreement shall remain in effect for a period of two years from the date of execution, unless terminated earlier by mutual written agreement. The obligations of confidentiality shall survive termination of this Agreement with respect to any Confidential Information disclosed prior to termination.

10. Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Delaware, without regard to its conflict of laws principles.

11. Remedies. The Below Signer acknowledges that any breach of this Agreement may cause irreparable harm to the Disclosing Party, for which monetary damages may be inadequate. The Disclosing Party shall be entitled to seek injunctive relief or other equitable remedies in addition to any other remedies available at law.

12. Entire Agreement. This Agreement constitutes the entire understanding between the parties with respect to the subject matter hereof and supersedes all prior agreements or understandings, whether written or oral. This Agreement may not be amended except in writing signed by both parties.

13. No Obligation to Proceed. Nothing in this Agreement obligates either party to proceed with any transaction or to disclose any specific information. Both parties retain the right to terminate discussions at any time without liability.

Signature of Below Signer: